

		declaration explaining the mistake regarding the address and Petitioner’s counsel then acted promptly to address the mistake within approximately one month and within less than one year after the claim arose. Nonetheless, regarding of whether relief based on mistake, inadvertence, surprise, or excusable neglect under section 946.6(c)(1) is available, Petitioner is entitled to relief under section 946.6(c)(2) based on his minority throughout the period from claim accrual through submission of the application for leave to submit late claim (and through the time of the hearing and then some). Under section 946.6(c)(2) the court is required to grant Petitioner relief as long as Petitioner make the application for relief within a reasonable time. The District argues Petitioner is not entitled to relief under section 946.6(c)(2) because, where the delay results from the unexplained and inexcusable inattention of the claimant’s own representatives rather than from the claimant’s minority itself, the policy underlying the minority provisions is not served by relief. To support this contention, the District cites <i>Greene v. State of California</i> (1990) 222 Cal.App.3d 117, 121-122. <i>Greene</i>, however, did not involve a request for relief based on minority under section 946.6(c)(2) and the delay in <i>Greene</i>, was several months, not the one-month period between Petitioner’s initial December 19th claim and the January 23rd application for relief. More importantly, unreasonable delay by a minor’s parents or attorney (as opposed to delay attributable to the minor) will not bar a late claim application filed within one year of accrual of the cause of action—i.e., the parents’ and attorney’s neglect or ignorance is not imputed to the minor. (<i>Hernandez v. County of Los Angeles</i> (1986) 42 Cal.3d 1020, 1029; <i>J.M. v. Huntington Beach Union High School Dist.</i> (2017) 2 Cal.5th 648, 652; <i>Rousseau v. City of San Carlos</i> (1987) 192 Cal.App.3d 498, 501-502.) Based on the foregoing, the petition is GRANTED. Petitioner has 30 days to file suit against the District. [Gov. Code § 946.6(f); see <i>Ard v. County of Contra Costa</i> (2001) 93 Cal.App.4th 339, 343.) Petitioner’s counsel is ordered to give notice of this ruling.
8.	<i>Abdalla vs. Valdez</i> 2023-01369966	Before the court is the motion to strike or tax costs filed by defendant OC Marketing Brands (Defendant) against plaintiff Sherif S. Abdalla (Plaintiff). As set forth more fully below, the motion is GRANTED IN PART and DENIED IN

PART. Costs shall be reduced by \$3,580 and the total amount awarded is \$42,175.28.

Allowable costs are set forth in Code of Civil Procedure section 1033.5, subdivision (a)(1), but recovery is limited to those costs which are reasonable in amount and reasonably necessary to the conduct of the litigation. (Code Civ. Proc. § 1033.5, subd. (c)(2) & (3).) A verified memorandum of costs constitutes prima facie evidence of the reasonable necessity of the costs claimed. Supporting documents must be submitted only if costs have been put in issue by a motion to tax costs. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.) If the items on their face appear to be proper charges, the burden is on the party seeking to tax costs to show they were not reasonable or necessary. (*Ladas v. Cal. State Auto. Ass'n* (1993) 19 Cal.App.4th 761, 774-776.) On the other hand, if items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (*Id.* at pp. 774-776.) Determination of whether a cost is reasonable is a question of fact within the trial court's discretion. (*Id.* at p. 761.)

Defendant concedes Plaintiff is the prevailing party, but challenges the costs claimed by Plaintiff for depositions and models/enlargements/photocopies.

Item 4: Allocable costs include the "[t]aking, video recording, and transcribing necessary depositions including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed." (Code Civ. Proc., § 1033.5, subd. (a)(3)(A).) Plaintiff concedes the \$3,580 in costs related to expert witness fees are not recoverable and withdraws this amount.

Defendant challenges the deposition costs of transcribing and videotaping the depositions of Plaintiff's designated experts David Fractor, Roberto Contreras, and John Scolaro because they did not testify at trial nor were their deposition transcripts used at trial. (Motion at p. 9.) Plaintiff contends Dr. Scolaro did, in fact, testify at trial and the depositions of Dr. Fractor and Dr. Contreras were necessary. (Alder Decl. at ¶¶ 7, 8.) As pointed out by Plaintiff, the need for deposition for purposes of allowable costs is determined "from the pretrial vantage point of a litigant who does not yet know whether or not to oppose the expert's opinion." (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 132.) Because depositions costs are expressly allowable costs, it was Defendant's burden to

		show the costs were unnecessary (at the time of incurring the costs) or unreasonable in amount. (<i>Ibid.</i>) Defendant failed to do so here. Defendant also failed to meet its burden to show the costs for transcribing or videotaping the depositions of all other experts were unnecessary or unreasonable in amount. In the reply, Defendant argues Plaintiff failed to submit invoices for the costs to transcribe the depositions of Sheriff Abdalla, Mark Brigham, and Dominguez Valdez III. Defendant, however, did not challenge the necessity or reasonableness of these deposition costs in the moving papers – only those related to expert depositions. As such, these expressly allowable costs were never put in issue and Defendant failed to meet its moving burden. The motion is therefore GRANTED in the amount of \$3,580, but otherwise DENIED as to this item of costs. <u>Item 13:</u> Expenses for models, enlargements, photocopies and electronic presentation of exhibits, including costs of rental equipment and electronic formatting, that are “reasonably helpful to the trier of fact” are recoverable costs. (Code Civ. Proc., § 1033.5, subd. (a)(13); <i>Christler v. Express Messenger Systems, Inc.</i> (2009) 171 Cal.App.4th 72, 90-91; <i>Ripley v. Pappadopoulos</i> (1994) 23 Cal.App.4th 1616, 1623.) Defendant challenges \$8,514 of costs associated with “MediVisuals + High Impact – Medical Illustrations.” Plaintiff contends the medical illustrations prepared by MediVisuals + High Impact were displayed to the jury during trial on the direct examination of Plaintiff’s expert and in closing argument to summarize and illustrate the nature and extent of Plaintiff’s injuries. Defendant does not dispute this fact. Defendant failed to meet its burden the costs were unnecessary or unreasonable in amount. The motion is therefore DENIED as to this item. Accordingly, costs shall be reduced by \$3,580 and the total amount awarded is \$42,175.28. Counsel for Plaintiff shall give notice of this ruling.
9.	Ani vs. Fowler 2024-01420562	Before the court is the motion of plaintiff Jennifer Ani (Plaintiff) for an order taxing costs claimed by defendants Monica Liliana Aragon-Guzman, Kelly Reeves, and Paw Prints in the Sand (collectively, Defendants) in memorandum of costs they filed on March 17, 2026. As more fully set forth below, the motion is DENIED. Allowable costs are set forth in Code of Civil Procedure section 1033.5, subdivision (a)(1), but recovery is limited